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File No.: EXP202310096

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 08/09/2021. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The grounds for the complaint are that to participate in the "Gomera Paradise Trail" race, personal data associated with vaccinations and COVID diagnostic tests are collected.

It includes:

1) Printout of a message from "Gomera Paradise," dated 19/08/2021, to the complainant, featuring the logo of "X Gomera Paradise," stating "vaccination certificate or antigen test or PCR." It informs: "after analyzing the current situation arising from the COVID-19 pandemic, the organization has decided to request participants, as recommended by various public bodies, the following:

- Certificate of complete vaccination or, failing that, a certificate of having the relevant dose due to having already contracted COVID-19.
 - Alternatively, within a maximum of 48 hours prior to the event, a negative PCR or antigen test result.
- The format will be carried out through the website gomeraparadise.com, where the organization will enable a private participant area, through which they will access using the registration ID and the email provided at the time of registration (attached file of the registration confirmation). In their account, there will be a section where they can attach the certificate via PDF or JPG."

SECOND: The complaint led to the initiation of sanctioning procedure EXP202103884, action code PS/00291/2022, which was archived due to expiration of the file on 11/07/2023.

In that resolution, it was indicated:

"As for the effects, Article 95 of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) states:

"3. Expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had expiration not occurred may be incorporated into it. In any case, in the new procedure, the procedures for allegations, evidence proposal, and hearing of the interested party must be completed."

"In this specific case, it was a few days after the registration period for the race closed, on 19/08/2021, when the respondent sent participants an email, stating: "after analyzing the current situation arising from the COVID-19 pandemic, the organization has decided to request participants, as recommended by various public bodies, the following:

- Certificate of complete vaccination or, failing that, a certificate of having the relevant dose due to having already contracted COVID-19.
- Alternatively, within a maximum of 48 hours prior to the event, a negative PCR or antigen test result."

The aforementioned resolution was notified to the respondent on 11/07/2023, and is final in the administrative route, as the period of one month has elapsed without the complainant having filed a voluntary appeal for reconsideration.

THIRD: On the date the archiving agreement was issued, it was estimated that the prescription period for the alleged infringements provided for in Article 71 and subsequent articles of the LOPDGDD had not elapsed.

By virtue of Article 95.3, second paragraph of the LPACAP, as the potential infringements were not deemed prescribed, the initiation agreement incorporated into this procedure, "the acts and procedures whose content would have remained the same had expiration not occurred," namely:

1) The verification actions of the General Subdirectorate of Data Inspection of EXP202103884, action code PS/00291/2022, specifically with the following text:

"The General Subdirectorato of Data Inspection verified the following:

a) Printout dated 21/10/2021, from the page gomeraparadise.com/reglamento/, which contains the REGULATIONS OF THE RACE: "reglamento X Gomera Paradise Trail21," which highlights:

- Mountain race organized by "GOMESPORT EVENTOS" to be held on 10 and 11/09/2021.
- According to its modalities, persons aged 14 and over may participate.
- To participate, among other requirements to be met, they must formalize the registration by completing a form published on the official website, www.gomeraparadise.com in the registration section. The deadline for this is from 14/05 to 15/08/2021.
- Acceptance of the race regulations derives from the formalization of the participation registration (art. 1).

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- In Article 14 of "number collection," which takes place once registered, from 6 to 10/09/2021, it states that "the participant must submit a COVID-19 protocol document in which they commit to having complied with the measures stipulated therein."

- In Article 9, it is indicated that the payment for registration will be divided into two parts: the first from 14/05 to 14/07/2021.

b) As of 21/10/2021, on the page gomeraparadise.com, there is a "Privacy and Data Protection Policy," with the logo of "Gomera Paradise Trial" indicating to: "B.B.B.," the respondent, as the data controller, "processes the data of 'clients and visitors to provide the services requested by users, or to resolve the doubts or issues raised by our visitors.' It is informed that 'all data provided by our clients or visitors to the website will be included in the record of data processing activities of a personal nature' of the data controller 'essential for providing the services requested by users, or for resolving the doubts or issues raised by our visitors."

'Legitimacy of processing: Why do we need your data?

1. a) Contractual relationship: This applies when you purchase one of our products or contract one of our services.

b) Legitimate interest: To address the inquiries and claims you raise and to manage the collection of amounts owed.

c) Your consent: If you are a user of our website, by checking the box in the contact form, you authorize us to send you the necessary communications to respond to the inquiry or request for information made.'

1) As part of the preliminary proceedings, AI/00029/2022, which were also included in the previous initiation agreement, under the heading:

"- On 25/01/2022, the Data Inspection sent a written request for information to the respondent by postal mail, which was delivered on 4/02/2022, as evidenced by the delivery proof from the postal service. The respondent was requested to provide the following information and documentation:

"1.- The legal basis for the processing and, if applicable, the circumstances that lift the prohibition on processing special categories of data, according to Article 9 of the GDPR.

2.- The purpose of the processing. A copy of the Record of Processing Activities.

3.- The appropriate safeguards implemented to protect the rights and freedoms of individuals.

4.- The categories of data subjects (workers, clients, users, etc.) and the information provided to them about the processing of the data. The number of data subjects from whom data has been collected and a description of the data collected.

5.- The Impact Assessment carried out or the reasons why it has not been carried out (to know the list of personal data processing activities that require an impact assessment, as well as any other information related to impact assessments,

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You can consult the tool "Gestiona EIPD" at

<https://www.aepd.es/es/guias-y-herramientas/herramientas/gestiona-eipd>

6.- The decision made regarding this complaint.

7.- Report on the measures taken to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.

8.- Any other information deemed relevant."

After the deadline given without receiving a response to the request, on 29/03/2022, the request for information was reiterated, and on 8/04/2022, a document from the respondent was received in this Agency, which states the following:

- The event for which the PCR or vaccination certificate is requested is a private event, "which is organized by him as a self-employed individual and responsible person for the same" and is governed by a regulation that those participating in the race must accept. Its article 24 indicates that it can be rectified, modified, or improved at any time by the organization.
- "All registrations and all relevant data collected from participants are hosted on an Online Event Registration Platform, which is governed by the following privacy policy, and through which all relevant information of each and every participant is uploaded, including both the vaccination schedule certificate or test."

It provides a transcription in copy-paste on the page of "USAGE RULES AND CONDITIONS ACCEPTED WHEN REGISTERING," "text in force since 18/11/2021," which contains among others, the following clauses:

1 ACCEPTANCE

1.1. You are registering through the AVAIBOOK SPORTS system, which is a technological solution contracted by the event's registration manager and provided by AVAIBOOK ON-LINE S.L

1.2. By registering, you expressly accept these General Conditions (CG) in their entirety.

2. CONTRACT

2.1 "By registering for the event through the AVAIBOOK Sports system, the legal relationship generated is exclusively between you - hereinafter the registrant - and the event's registration manager - hereinafter MANAGER.

AVAIBOOK simply provides the technological tool that allows managing registrations for the event, and therefore bears no responsibility for the holding or suspension of the event, the information provided by the MANAGER about it, possible organizational failures, any damage or injury that the registrant or their belongings may suffer during the event or for any other reason not related to its technological solution.

(...)

6. PROTECTION OF PERSONAL DATA

6.1. In accordance with the provisions of Article 33 of Organic Law 3/2018 on Data Protection and the guarantee of digital rights, AVAIBOOK will be considered the "Data Processor" and, therefore, access by AVAIBOOK to the data will not be considered communication or transfer of data.

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personal data of the REGISTERED, solely for the purpose of providing the registration service for the event.

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The respondent states that given the epidemiological situation arising from the COVID-19 pandemic, "after obtaining authorization from Health for the celebration of the event, it was deemed appropriate to request one of the two options explained above, simply for the sole and exclusive purpose of ensuring the maximum possible safety of all participants in the event and, in the event of an outbreak of said disease at the event, to have greater control and limitation of possible severe contagions, all while

providing all information to the competent public authorities.”

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The respondent states that “On 19/08/2021, an email was sent to the participants, through the online registration platform, requesting that this information be uploaded to the online registration platform, which can only be accessed after formalizing the registration and having previously accepted its privacy policy.”

The message, of which a screenshot is provided, included the same text of the message that the claimant provided, which continued literally:

“This option will be available from Monday 23/08 until Sunday 5/09 for the Vaccination Certificate option. In the case of PCR or Antigen tests, it must be provided to the Organization at the time of collecting race numbers.

In this time, if we want competitions to continue being organized, we must adapt to current situations. Finally, it should be noted that if you have any questions about this email, you must send an email to info@gomeraparadise.com, solely for inquiries, even believing that the information is quite clear and transparent.”

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The respondent states that on 24/08/2021, “another email was sent,” the literal text provided as a copy-paste:

“You now have available in your Private Participant Zone the box to upload the vaccination certificate or the relevant Certificate based on COVID-19 (having immunity, having at least one dose, etc.). Regarding the doubts and/or suggestions that have been sent to us regarding said certificate, WE CLARIFY:

- At no time have we sent the obligation to present documentation or the participant will be removed from the event.
- Said certificate is requested in order to ensure the maximum guarantees of safety regarding COVID-19. Since we are living in a time of health alert, we believe that the best for everyone is to guarantee the maximum safety and be supportive.
- We understand that we must all be supportive in order to celebrate events safely and responsibly. Therefore, we appeal to responsibility, solidarity, and common sense to make the X GOMERA PARADISE TRAIL a safe event with guarantees.

..., the procedure to be carried out is as follows:

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Access your Private Zone:

https://inscripciones.gomesporteventos.com/inscripcion/ix-gomera-paradise/zona_privada/loggeo/

- Enter your registration ID (you can find it on your registration receipt).
- Enter the email.
- Upload (in a collective manner) the vaccination certificate or certificate that guarantees the presence of antibodies, etc.

-Finally, it is stated by the respondent that: “Regarding the decision made concerning this complaint, as the sender of this complaint is unknown among 1200 participants, we cannot confirm whether a decision was made regarding the complainant.”

3.- On 22/04/2022, the Data Inspection sent a new written request for information to the respondent via the Single Authorized Electronic Address service, which was accepted by the recipient on 25/04/2022. The respondent was requested to provide the following information and documentation, without receiving a response, regarding:

1.- A copy of the data processing agreement signed between the owner of the website “gomeraparadise.com” and AvaiBook On-Line S.L.

2.- The total number of reports on PCR or antigen tests and certificates of the complete vaccination

schedule collected from the interested parties. Retention period of the same.

3.- The legal basis for the processing of such health-related data and, if applicable, the circumstances that lift the prohibition on processing special categories of data, according to Article 9 of the GDPR.

4.- The purpose of the processing. A copy of the Activity Register of the processing.

5.- The Impact Assessment carried out, or reasons why it has not been carried out (to know the list of personal data processing activities that require an impact assessment, as well as any other information related to impact assessments, you can consult the tool "Manage EIPD" at

<https://www.aepd.es/es/guias-y-herramientas/herramientas/gestiona-eipd>).

FOURTH: On 28/08/2023, the director of the AEPD agreed:

"TO INITIATE SANCTIONING PROCEDURE against B.B.B., with NIF ***NIF.1, for the alleged infringement of the GDPR, in the following articles:

-9 of the GDPR, in accordance with Article 83.5.a) of the GDPR and classified as very serious for the purposes of prescription in Article 72.1.e) of the LOPDGDD.

-13 of the GDPR, in accordance with Article 83.5.a) of the GDPR and classified as very serious for the purposes of prescription in Article 72.1.h) of the LOPDGDD.

-30 of the GDPR, in accordance with Article 83.4.a) of the GDPR and classified as serious for the purposes of prescription in Article 73.n) of the LOPDGDD."

"THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be three administrative fines for the infringement of:

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- Article 9 of the GDPR may impose a fine of 8,000 euros.

- Article 13 of the GDPR may impose a fine of 6,000 euros.

- Article 30 of the GDPR may impose a fine of 1,000 euros."

FIFTH: On 27/09/2023, allegations were received from the respondent, stating:

- The request for data related to COVID vaccination and diagnostic tests concerning the event was based on the free, unequivocal, and informed consent of the data subjects, which exempts from the prohibition of processing.

It adds that consent can be unequivocal and granted implicitly when it is inferred from an action of the data subject, such as uploading their data to the platform.

- On 19/08/2021, the respondent communicated to the data subjects the rules and conditions that would govern the celebration of the event, among which the aforementioned documentation was requested, and informed them of the procedure for providing it in case they decided to do so, "from the awareness and solidarity towards the rest of the participants."

To clarify the content of this documentation, on the 24th of the same month and year, the respondent sent the participants a second communication clarifying the voluntary, optional, and non-mandatory nature of providing this data, specifying the time frame (23/08 to Sunday 5/09: vaccination certificate), in the case of PCR or antigen tests, it must be provided to the organization at the time of collecting race numbers.

The respondent considers that these documents constitute proof of the lawfulness of the processing and of the unequivocal consent of the users.

In the communication of 24/08/2021, it stated: "At no time have we communicated the obligation to present documentation or be removed from the event," and the respondent adds that "in no case was participation in the event denied to anyone for not providing documentation related to health data, nor was there any collection or verification on-site on the same day of the event." "Proof of this is that the number of participants in the event totaled 1,350, and only 690 of those participants voluntarily uploaded the certificate in question to the platform, with 660 participants having not provided a COVID certificate, diagnostic test, or any similar document."

The respondent states that “on the day of the race, no COVID vaccination certificate or similar was requested, and there was no one asking participants for any type of document at the entrance of the sporting event.”

- The respondent states that the purpose of the processing was to ensure the safety and health of the participants in light of the pandemic and health crisis arising from COVID-19, as informed, for example, in the communication of 24/08/2021.

The respondent states that their intention was to act diligently regarding the criteria and guidelines that the health authority had provided at that time, considering that, at the time of the request and processing of the data, the measures and circumstances were different for those who were vaccinated compared to those who were not.

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- Regarding the infringement of Article 13 of the GDPR, the respondent indicates that in the "terms of use and conditions," as well as on the "platform," the identity and contact details of the data controller and their representative were provided, and in point 2 of the "conditions," it states that the data recipient is AVAIBOOK SPORTS, "which makes several references to the policies of the MANAGER, that is, the policies of the websites of 'GOMERA PARADISE'—which refers to that of GOMESPORT, for additional information," and in this same document, detailed information is provided—SUBMITTED DOCUMENT 1, a screenshot of the "PRIVACY POLICY AND REGULATION 2023," excerpts, link to the full text at: "<https://gomesporteventos.com/politica-privacidad>." In document 1, excerpt, it is noted that despite being from 2023, it retains the wording that "health data, medical certificates, vaccination certificates, or antigen tests provided by the interested parties" will be processed, related to "purposes" "to ensure the safe development of the event by adopting health measures... medical certificates and antigen tests." In legitimization, it reiterates that "the processing of health data is based on the consent of the user required in Article 9.2.a of the GDPR, which will be evidenced by the uploading of documentation to our platform and its presentation to staff on the day of the event. The user can revoke the consent granted at any time."

The respondent states that prior to this procedure and with a corrective intent, an updated informative clause of accessible understanding has already been incorporated for the interested party on the AVAIBOOK Sport platform. In it, all details regarding the protection of the requested data can be read clearly and simply. Although this has been done with the intention of improving the management of the respondent—who has collaborated at all times and has not put any obstacles to collaboration with the AEPD—and the events organized by them. At all times, there was a desire for clarity and simplicity in communications regarding the participants' data.

The respondent states that while it is true that the information could have been provided in a more complete, clear, and precise manner in a single document; due to some confusions arising from the information on data processing presented on the data controller's website, it was deemed appropriate and necessary to make clarifications in this regard. For this reason, the purposes and legitimization for the processing of the participants' data for the event were communicated via email. Specifically, as we have already mentioned at the beginning of this document, two emails were sent, the dates and clarifications of which were as follows: - August 19, 2021: "In your account, you will have a section where you can attach the certificate via PDF or JPG. This option will be enabled from Monday, August 23, until Sunday, September 5, for the Vaccination Certificate option. In the case of PCR or Antigen tests, you must present it to the Organization at the time of collecting the bib numbers." - August 24, 2021:

- The respondent also provides the response to their request made on 14/08/2021 to the Canary Islands Health Service regarding the "celebration of a mass event," due to the COVID-19 crisis, and the response from them, dated 23/08/2021, stating that it was received on 28/08/2021. It indicates that this is evidence of diligent processing, given the respondent's interest in ensuring their actions and the

correct sporting development with the national health situation and the health measures to be complied with. From DOCUMENT 2 that is submitted, it is inferred:

- The Agreement of the Government of the Canary Islands adopted in the session held on 5/08/2021, BOC 9/08/2021, is applicable, by which the update of the...

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Preventive measures established by Government agreement on 19/06/2020 to address the health crisis caused by COVID-19, once phase 3 of the plan for the transition to a new normality has been surpassed, section 3.15 “celebration of non-professional, professional, and federated sports events taking place in the Canary Islands,” determining that, according to the statement, organizers of events on official calendars of sports federations must obtain prior authorization. Conversely, organizers of scheduled sports events will not need prior authorization from the Directorate of the Canary Health Service, although they must comply with the provisions indicated in the same section as applicable and mention a series of measures according to alert levels, sports events with public attendance, or measures for interpersonal separation, cleaning, and disinfection.

The respondent deduces that, for all these reasons, it is even more evident as requested, the provision of the certificate, “although voluntary,” to guarantee the safety of those involved.

- It states that it has a Risk Assessment Tool (RAT) that complies with the content prescribed by Article 30 of the GDPR and has conducted the required risk analyses mandated by Article 32 of the GDPR, “obtaining risks that classify them as marginal and ‘acceptable,’ adopting preventive and corrective measures so that the residual risk reaches an ‘acceptable’ level.” It provides DOCUMENT 3, which has been updated with the designation of the Data Protection Officer (DPD).

The aforementioned DOCUMENT 3 is the RAT for “management of sports events,” in which it reproduces part of the “PRIVACY POLICY AND REGULATION 2023.” It reproduces “legitimization: art 9.2.a GDPR, 6.1.e) of the GDPR and Law 2/2021 of 29/03, on urgent measures for prevention, containment, and coordination to address the health crisis caused by COVID-19, ‘purpose: to identify the participants of the sports event, as well as the management of the same to guarantee the safety and health of the participants through appropriate and agile preventive management in the face of the pandemic situation and health crisis derived from COVID-19.’” In categories of data, it includes, among others, “health relevant for participation in the event,” and “in guarantee of safety in a health crisis situation - COVID vaccination certificate,” and in recipients, it will be communicated to “AVAIBOOK SPORTS.”

It provides in DOCUMENT 4, the communication on 23/06/2023 to the AEPD of the appointment of Data Protection Officer. Dated 10/07/2023.

- Regarding the measures adopted as a result of this procedure, the respondent indicates that “it has activated the security breach procedure notifying necessary parties, analyzing and documenting the breach,” noting:

- a. Adoption of measures for confidentiality, integrity, and availability

- b. In accordance with Article 17 of the GDPR, data was deleted after the strictly necessary time for the purpose for which it was requested.

- c. Adoption of measures to ensure the resilience of processing systems and services, as well as to restore the availability and access to personal data quickly in the event of a physical or technical incident.

- d. Regular verification, evaluation, and assessment processes of security measures.

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- e. Pseudonymization and encryption of personal data.
- f. Data unlinking processes.
- g. Execution of data deletion.
- h. Updating and reviewing data protection and security policies.
- i. Updating incident management procedures.
- j. Incorporation of procedures to respond to GDPR obligations.
- k. The procedures, resources, and means of detection and management (own or through third parties) as well as the guarantees that all of the above works correctly.
- l. Review and update of the breach notification procedure. Document No. 5
- m. Review and update of the procedure for exercising rights involving the figure of the Data Protection Officer. DOCUMENT No. 6
- n. Periodic audits.
- o. Furthermore, as a pending but planned measure, to conduct new training, the date of which is yet to be confirmed.
- p. Update of the informative clause on the platform.”

The respondent understands that it has adopted measures to prevent further incidents of the type addressed in the procedure.

The respondent states that good faith and the desire to act in accordance with the guidelines and criteria of the health authority at that time and the intention to organize a sports event without putting any participant at risk are present.

- It requests that it be considered as mitigating factors that the request for documentation did not benefit the respondent, but rather the opposite, due to the cost of the platform, but it did so to assume the common good of the participants, for the benefit of the collective interest, and a DPD was appointed voluntarily along with the other measures already indicated.

SIXTH: On 14/06/2024, it was decided to open a period for the practice of evidence, agreeing:

1. To consider the complaint filed by the complainant and its documentation as reproduced for evidentiary purposes.
2. To incorporate the documents cited in the initiation agreement and in which reference was expressly made to them.

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3. Likewise, the allegations regarding the initiation of the referenced sanctioning procedure, presented by the respondent, and the accompanying documentation are reproduced for evidentiary purposes.

Additionally, the respondent is requested to provide or report:

4. According to their statements, on the website of “X Gomera Paradise Trail,” there was a section on PRIVACY POLICY AND DATA PROTECTION, the content of which is available in the file of the printed version dated 21/10/2021. They are requested to inform in which section of the website this information was located, whether it was in the general access part or in the race registration part, substantiating this.

On 5/07/2024, their response was received, stating:

“The Privacy Policy that contained the necessary information to be provided to users was incorporated at the time of organizing the event on the registration screen.” They provide what they claim was ANNEX I, which does not match the one included in the file, extracted by the SGID on 21/10/2021, which was on the race website www.gomeraparadise.com. The one they now provide carries the GOMESPORT logo and was not included in the procedure. It does not bear a date of the version or the start of validity.

In the ANNEX I provided, titled “Privacy Policy www.GOMESPORTEVENTOS.COM,” it informs regarding participation in the race:

“Privacy Policy at a glance”

- “we use the data you have provided online, or through any other means for the registration of your

entry,

- Why do we have it? "we are legitimized to process the data

"When you register for any of our events, as well as in any of our forms."

In section 1, titled: Who is responsible for processing your data?, the respondent is listed, associated with the website www.gomesporteventos.com, and it has a different address from another Privacy Policy included in the file on 21/10/2021, and it includes a reference to the DPD. It also states that the data provided through the various data collection forms will be processed by the respondent, and that such processing is recorded in the Register of processing activities.

In section 2 "What are your personal data used for?", it indicates that "at www.gomesporteventos.com" we process data from both users of our website and third parties who maintain a relationship with us. It differentiates the information by type of persons from whom "we process the data," highlighting what is contained about "data of participants who register on our platforms for the events," in which it informs that it processes special category data, health data, medical certificates, vaccination certificates, or antigen tests provided by the interested parties, and identifying data: name, surname, postal and electronic address, phone number. In "how do we obtain your data?", it states that "through the online form you complete for the registration of the event and activities carried out by GOMESPORT." "The processing of the data is subject to the

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Acceptance of the privacy policy by checking a box included in the registration form for the sports event."

In the section regarding the purposes for which the data will be processed, it states: "to generate and manage the documentation associated with the registration, to provide information about the event to those who have registered, to process their requests and inquiries through the website, to ensure the safe development of an event by adopting appropriate health measures, and to guarantee the safety of all participants through solidarity by providing documentation regarding medical certificates and antigen tests."

In the section on the legitimacy for data processing, it is indicated that "the processing of health data is based on the user's consent required under Article 9.2.a of the GDPR, which will be evidenced by uploading the documentation to our platform and presenting it to the staff on the day of the event. The user may revoke the consent granted at any time."

In the section "How long do we keep your data?" for event participants, it states that "those data processed based on the participant's consent will be retained as long as they are relevant for the purpose for which they were collected and the consent has not been revoked. Health data can be directly deleted by the participant on the platform and will be deleted once the event has concluded by GomesSport."

Section 4 "Additional information on data processing" indicates that the personal data processed by the respondent "may be mandatory or voluntary. Through the web forms, special category data will be requested to ensure your privacy. The provision of health data is not mandatory, with the data to be requested in the forms being: 1 identifying data, 2 data related to registration, and 3 data related to transactions."

In the section on exercising rights, it is also reported that the respondent has appointed a DPO, with the address (...)

@dpocanarias.com and a different address for exercising rights than the one stated in the privacy policy of 21/10/2021.

The respondent states that "This informative layer was incorporated into the registration form so that future participants would know the type of data that would be collected, as well as the responsible party, the purpose, the recipients, and the rights, referring to the legal notice on the website itself and to the privacy policy of the website www.gomesporteventos.com to access the second informative layer. However, this layer is currently not operational as the content and the link to the event

registration have been removed."

The respondent provides ANNEX II under the title "Denial of access to the registration form," in which there is a screenshot of a website WITHOUT IDENTIFYING WHICH ONE IT CORRESPONDS TO, informing of the "X Trail GOMERA PARADISE," stating "the registration period is closed," and showing the tabs for "home," "participant's private area," "this event has already taken place."

The respondent states that "notwithstanding the above, in the Legal Notice of the website <https://gomeraparadise.com/aviso-legal/>, specifically in its section 9, regarding the PRIVACY POLICY, the possibility of expanding information related to data processing is mentioned," as indicated in its literal reproduction, with the text:

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"The user can consult how the respondent uses their data and the security measures implemented at the link to the Privacy Policy of this website and in the 'Privacy Policy' of the website www.gomesporteventos.com where they can find more information about the processing of participants' data in our events at the following link: <https://gomesporteventos.com/politica-privacidad/> On the other hand, if we go to the link <https://gomesporteventos.com/politica-privacidad/> we can see the content displayed in ANNEX III of this document framed in red, where specific reference is made to the processing of health data and the basis for legitimacy, which includes the express consent of the user, which can be revoked at any time, although this does not affect the treatments carried out prior to this."

A Regarding ANNEX III provided, as it may affect the participants in the race, the document is titled "Information regarding consent," with the GOMESPORT logo. It stands out because it begins at point 2 "What are your personal data used for?", coinciding with the information provided in ANNEX I previously mentioned that the respondent provided.

B 5. The respondent was also requested to inform: "Regarding the same information contained in the PRIVACY AND DATA PROTECTION POLICY, it is requested that the version in force at the time of the registration period for the race - 14/05 to 15/08/2021 - and the collection of COVID health data from 23/08 to 5/09/2021, when this additional health data was collected (certifying the validity of the version or versions).

C Additionally, please respond if said informative content underwent modifications after the emails of 19 and 24/08/2021. Indicate the date of the version and provide copies that support your statements.

D (Note that information regarding the section "USAGE RULES AND CONDITIONS FOR REGISTRATION" is not requested).

It was responded that "in any case, no changes were made to the legal text after the email sent on 19/08/2021.

ANNEX IV and V include screenshots of the communications sent to the participants of the race. In both texts, they are sent from an address gomeraparadise.com in which it has already been seen that, in the first message, dated 19/08/2021, it was indicated that the certificates would be sent through the participant's private area on the website www.gomeraparadise.com. Furthermore, in this first message, it is noted at the bottom that "you have received this email because you registered for an event organized by GOMESPORT EVENTOS."

In the second message dated 24/08/2021, it was also indicated that the procedure was "access your private area: <https://inscripciones.gomesporteventos.com/inscripcion/ix-gomera-paradise/private-area/login/>, enter your registration ID (in the registration receipt and the email with which you registered). At the bottom of the message, it is stated: "GOMESPORT EVENTOS - for any questions contact us at info@gomeraparadise.com. You have received this email because you registered for an event organized by GOMESPORT EVENTOS."

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6- Regarding the submitted RAT - It is requested that they provide a copy of the RAT "management of sporting events" in the current version that corresponds to the stadium and temporal situation of the date on which the cited health data was collected (accrediting it).

It is requested that they explain why the RAT they provide (referring to the appointment of the DPD 6/2023) contains a reference to the health data that will be collected or is being collected, if in the future the collection of such data related to COVID is not foreseeable.

They responded that the RAT submitted in their allegations was the current one at that date, and therefore it includes the reference to the DPD designated on 29/06/2023, having been modified to the current version in October 2023.

They state that they provide a copy of the same, valid at the time of organizing the event, which they claim already mentioned all the data processing that was being carried out at that time, including health data, and that it was valid from 17/08/2021.

They provide ANNEX VII, which states that it includes the evolution of the versions of the treatment "management of sporting events."

Access to said ANNEX is granted. Each of the supposed versions only differs by the addition of the preceding literal, explanatory for this response with the titles "RAT valid at the time of the event," "RAT sent to the AEPD before its complete review," "RAT valid as of the current date." None carry a date that can be correlated with their approval or renewal/modification, therefore, it is not possible to deduce the initial period during which it was valid.

All submitted versions contain the information prescribed by Article 30, differing by slight nuances in their content. Regarding the supposedly valid RAT at the time of registration for the race, which has been included for the response "RAT valid at the time of the event," it is noteworthy:

- Legitimacy, Article 9.2.a) GDPR,
- Purpose: to identify the participants of the sporting event, as well as the management of the same to guarantee the safety and health of the participants through adequate and agile management of prevention in the face of the pandemic situation and health crisis arising from COVID-19.
- Category of data: identifying data and characteristic data, relevant health data for participation in the event. Health data to guarantee safety in situations of health crisis (COVID vaccination certificate).

7- Regarding the communication of 24/08/2021 to the participants of the race, it is requested that they send a literal copy of the same, in the format in which it was sent, the manner in which it was sent to the participants, and how they prove that it was sent to the claimant or the rest of the participants and that they read it.

It is understood to be answered with the submitted ANNEXES IV and V. The respondent adds that it was sent to the registered participants at the email address they included in the completed registration form, the only contact method available.

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It indicates that it is in that "own email where access to the private area at <https://inscripciones.gomesporteventos.com/inscripcion/ix-gomera-paradise/private-area/login/> is sent, and therefore to its privacy policy." It is in that section and in the "LEGAL NOTICE of the website where the interested party is informed that they must access periodically to verify changes in the data protection policy," "but the respondent considered the email as the way to modify and clarify the conditions of participation in the event."

8- Regarding the same aspect of the previous point, if the option to upload vaccination certificates to the private platform was available from 08/23 to 09/05/2021, indicate, substantiating it, the certificates collected (at least the number) on the dates, starting from the same day 08/23. The respondent replied that the numbers given in allegations are an estimated figure of certificates that were collected, and

they cannot corroborate the exact number, as once the event was completed, they were deleted, considering their retention unnecessary.

9- In their allegations, they specify the number of people who uploaded the certificate to the platform. Documentary evidence of the cited number is requested, or how they conducted the counting. They are asked to inform whether there was any control at the race exit or on the contracted platform regarding the individuals who provided the certificates, the tests, or the recovery certificates, and the number of people who used the antigen tests and the recovery certificate from the illness, or if they can break down the number they provide in their allegations of 690 people. The respondent replied that "During the registration periods for the event, the respondent was able to access information regarding the certificates that had been provided. However, there was no access by the responsible party, as it was only necessary to verify who had submitted them, and at no time was access to the content had." This statement could be erroneous since the respondent is the responsible party and states that they were able to access and then says that there was no access by the responsible party, who is the same. The respondent indicates that there is no exact number of people who provided their certificate, also because the relationship with the person in charge ceased. The data provided in allegations were obtained on 09/05/2021 by counting from the platform itself. They add that, since the submission of certificates was voluntary, the certificate was not requested in person nor was it verified who had submitted that certificate through the platform without prohibiting the participation of users who did not provide it. The initial intention was to ensure the safety of all participants, even though it was held outdoors. The respondent indicates that given the suspicions and "the changes and the communication presented on 08/28 with the health authority, it was decided not to take verification measures allowing the participation of all registered individuals, regardless of the number of participants who provided the certificates."

10- Inform about the system they implemented for the deletion of the collected health data, the date, and how they ensured that the data ceased to be processed on the contracted platform.

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He responded that the defendant himself ordered that all certificates provided by the participants be deleted, as their retention was not necessary for any subsequent procedure, "especially given their controversy."

SEVENTH: On 11/07/2024, a resolution proposal was issued, stating:

"That the Director of the Spanish Agency for Data Protection sanctions B.B.B., with NIF ***NIF.1, for the following infringements of the GDPR:

-9, in accordance with Article 83.5.a) of the GDPR and classified as very serious for the purposes of prescription in Article 72.1.e) of the LOPDGDD, with a fine of 8,000 euros.

-13 in accordance with Article 83.5.a) of the GDPR and classified as very serious for the purposes of prescription in Article 72.1.h) of the LOPDGDD, with a fine of 6,000 euros.

-30, in accordance with Article 83.4.a) of the GDPR and classified as serious for the purposes of prescription in Article 73.n) of the LOPDGDD, with a fine of 1,000 euros."

EIGHTH: On 30/07/2024, allegations were received from the defendant, stating:

-1 "In the Race Regulation, it is indicated that the organizer of the race is GOMESPORT EVENTOS. In the header of the document, its logo is included, referring to it as the 'data controller.' 'This Regulation provides the first layer of information, containing who the controller is, the purpose: registration and management of the event. This responds to some of the requirements set forth in Article 13 of the GDPR and all those included in Article 11 of the LOPDGDD, 'as it contains the basic information,' in that article, in section 2."

The defendant indicates that the Race Regulation was modified, proceeding to communicate its clarifying aspects via email on 24/08/2021. "What was stated in Article 14 was an error in the wording, from which the obligation of the COVID certificate could initially be inferred; from the message sent on 24/08, the 'rectification of such obligation is inferred, delving deeper into the solidarity nature, and

accommodating the legitimization basis of Article 6.1.a) of the GDPR.”

“On the other hand, upon examining the Privacy Policy of www.gomeraparadise.com, it can be inferred that, in general, interested parties were already informed about the identity of the Data Controller, among other aspects: ‘the responsible party of the page and of the data collection as the ‘data controller’ is B.B.B., who processes the data of ‘clients and visitors to provide the services requested by the users.’” Although, in this Privacy Policy and data protection, it indicates that the legitimization is based on Article 6.1.b) of the GDPR, the processing will only be lawful if at least one of the following conditions is met: the processing is necessary for the performance of a contract in which the data subject is a party or for the application at the request of the data subject of pre-contractual measures,” in the registration form, a specific clause was included in which reference was made to Article 6.1.a) of the GDPR to substantiate such occasional processing.

“This was decided as such, since the collection was going to have a limited duration and it was not deemed appropriate to modify the website's Policy in its entirety, as it could mislead other users (the website policy has a generic wording for all users accessing the website, regardless of whether they...”

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(registered or not). Therefore, a specific clause directly related to the characteristics of the event at the time of registration was included.

Without prejudice to understanding that the duty of information stipulated in Article 13 of the GDPR was fulfilled by including the corresponding Privacy Policy on the website and the corresponding clause in the registration form, seeing that the claimant stated that the voluntary nature of providing the COVID certificate was not clear, one day after the opening of the registration period, that is, on August 24, 2021, a clarifying email was sent that emphasized consent as the basis of legitimacy on the part of the users. This left an 11-day margin for those users who had uploaded it under the belief that it was mandatory to freely delete it.

"It should be noted that the deadline for providing the COVID certificate was from Monday, August 23, 2021, to Sunday, September 5 of the same year, thus reducing, in any case, the damage resulting from the confusion that may have arisen in the participant to one day and providing participants with the possibility of revoking consent by deleting the COVID documentation provided. Thus, and for further clarification, an email was sent on 24/08/21, just five days after the communication of 19/08/21 and one day after the opening of the deadline for submitting the documentation, informing about the purpose for the processing of this data, specifically stating that “this certificate is requested in order to ensure maximum security guarantees regarding COVID-19.”

-2 The respondent indicates that they disagree with the content of the eighth proven fact, estimating that the information provided was not taken into account, and that although the LINK to the registration form was removed - due to data retention limitations - they provide a link that, if clicked, gives a 404 error, and if pasted into the browser's search bar, leads to the regulations of the 2021 edition of the race (already seen), and with this, the corresponding informative clause, the purpose of the processing was communicated to the participants in the email sent on 24/08/21.

“In the same way, it was informed how the data would be collected in the first email: ‘the format to be carried out will be through the website www.gomeraparadise.com, in which the Organization will enable a Private Zone for the Participant.’”

The respondent estimates that the basic information stipulated in Article 11.2 of the LOPDGDD should be considered provided “through the emails, as well as through the privacy and data protection policy included on the website, omitting what is included in the clause of the registration form whose main purpose was to replicate what is contained in the privacy policy and add the specific treatments of the event.

For its part, it was submitted as evidence to verify the information that the responsible party provided to the participants the legal texts included on the website www.gomesporteventos.com, which, although it has been considered that sending these legal texts was not appropriate as they were not part of the

event, we believe that this fact should be clarified.

As has already been demonstrated, the official website of the event was www.gomeraparadise.com, as indicated in the Regulations. However, and due to the fact that the Data Controller had at that time, and still has currently, two websites, registration was carried out from www.gomesporteventos.com, although access was made from

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www.gomeraparadise.com. Therefore, it is necessary to take into account the information provided through these legal texts, as this constitutes a significant part of the information provided to the participants.

It is reiterated in the proven facts, especially the tenth, the lack of information provided to the participants regarding the collection of health data. In this context, it is considered that such information has already been provided, as well as sufficient evidence to verify it, which includes the following:

1. Race regulations (Article 14 in relation to Article 24).
2. Privacy Policy of www.gomesporteventos.com and www.gomeraparadise.com.
3. Clause inserted in the registration form.
4. Email sent on 24/08/21.

The respondent adds that, in other resolutions with the same infringement, such as file 202312720, no sanction was imposed, but rather a warning was issued, requesting it based on the fact that, out of 1350 participants, only 660 opted not to give their consent, understanding that this was of a solidarity nature and not mandatory. The matter was already clarified by email on 24/08/2021, and given its punctual nature, as well as the intention to provide participants with any information they requested. Subsidiarily, it requests that the sanction on this article be reduced.

3. The respondent reiterates the validity of the consent provided in Article 9 of the GDPR, and that this can be "unequivocal and given implicitly when deduced from an action of the interested party (such as uploading their data to the platform)." In this case, we find an active action on the part of the participants/interested parties, who uploaded their data, thus constituting explicit consent.

It adds that the voluntary and optional nature of providing the aforementioned documents is evidence of the lawfulness of the processing and the unequivocal consent of the users.

4. Regarding the RAT, "the version control table of the RAT is attached in Document No. 2, which includes that related to 'PARTICIPANT MANAGEMENT', following the new request from the Agency; not considering it appropriate to provide again the historical versions that the Agency already has in the documents of this procedure."

Document 2 states: "Record of processing activities-B.B.B.-Gomesport Eventos" "management of sporting events", "Record of changes",

It appears in v.1: "initial creation", change date "1/05/2021",

v.2: change date 17/08/2021 "change: Inclusion of COVID vaccination certificate in the data collected from participants",

in v.3: "change: Inclusion of the data of the designated DPO" "date 10/07/2023,

v.4: "removal of the RAT of data related to COVID vaccination certificates and greater definition in the data in the processing", "change date 14/10/2023".

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5- The respondent indicates the circumstances that occurred: good faith, acted in accordance with the guidelines and criteria of the health authority during times of pandemic and health crisis with the intention of organizing a sporting event, without putting any participant at risk, incurring an additional

cost for the implementation of the platform to safeguard the common good of the participants. It requests that the following be considered as mitigating factors, in accordance with the provisions of the GDPR, the lack of profit, the voluntary designation of the Data Protection Officer, and other measures already indicated throughout this document.

NINTH: In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

1) The private race "X Gomera Paradise Trail" took place on 10 and 11/09/2021, with different modalities and open participation for individuals over 14 years old, as stated in the Regulation of said race (RC), available at <https://gomeraparadise.com/reglamento> (printed version included in the file dated 21/10/2021).

2) The official website of the race, according to the respondent: B.B.B. with NIF ***NIF.1, and the RC itself, was www.gomeraparadise.com. To participate in the race, one had to fill out a form through the website in the "registrations" section. The deadline for this was from 14/05 to 15/08/2021 (articles 7 and 8 of the RC). This completion implied acceptance of the conditions and requirements of the RC (article 1), informing that it could undergo modifications, corrections, or improvements at any time by the organization (art 24).

3) In the RC, in the version obtained for this file, which bears the logo of X TRAIL Gomera Paradise, it was initially specified regarding the data related to COVID-19, in section 14, within "collection of bib numbers," which took place, once registered, from 6 to 10/09/2021, that "the participant must submit a Covid-19 protocol document in which they commit to having complied with the measures stipulated therein," without it being evidenced that this protocol was part of the registration form. It was also indicated that it was organized by GOMESPORT EVENTOS. The RC did not contain any aspect regarding the protection of personal data collected.

4) The General Subdirectorate for Data Inspection obtained on 21/10/2021 a printed copy from the screen of the "privacy and data protection policy," with the information that was on the race's website www.gomeraparadise.com, located at <https://gomeraparadise.com/politica-privacidad/>, containing the logo of X TRAIL Gomera Paradise, informing about personal data, that:

- the person responsible for the page and for the collection of data as "data controller" is B.B.B., who processes the data of "clients and visitors to provide the services requested by users."

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- The venue before which to exercise rights and the option to file a complaint with the AEPD.

- Regarding the legitimacy of the processing, information was only provided concerning the products or services offered by the complainant, with the basis for the legitimacy of the processing being "Contractual relationship," derived from the purchase or hiring of their services. Nothing was mentioned about the collection and processing of health data.

5) It is evidenced that a few days after the registration period closed, on 19/08/2021, the respondent sent a message to the participants through the online registration platform for the event (assertion of the respondent in previous investigative proceedings on 08/04/2022, with a printed copy of the message submitted as evidence), requesting the race participants to "provide":

- Certificate of complete vaccination schedule or, failing that, a certificate of having the relevant dose due to having already contracted COVID-19. (the underlined part, verbatim, could refer to having had the disease, "a certificate to that effect must be provided").

- Alternatively, within a limit of 48 hours prior to the celebration of the event they are going to participate in, a negative PCR or antigen test.

To submit the aforementioned documents, the race website was enabled: gomeraparadise.com, in the "private participant area," by logging in with the details provided during the prior registration: assigned registration ID and the email noted when registering. The deadline set by the respondent for this was

from 23/08 to Sunday 05/09/2021. In the case of PCR or antigen tests, they had to be submitted to the organization at the time of collecting race numbers.

6) On 24/08/2021 (evidenced by a screenshot provided by the respondent on 08/04/2022 as requested in evidence), the respondent sent another message to the race participants via the same channel as the one on 19/08. The communication informs that the private participant area is now available to upload the COVID-19 vaccination certificate, "in response to the doubts and/or suggestions we have received: At no time have we communicated the obligation to present documentation or have we removed any participant from the event. This certificate is requested in order to ensure the maximum safety guarantees regarding COVID-19, due to the health alert we are experiencing; we believe that the best for everyone is to guarantee the highest level of safety," appealing to everyone's solidarity to be able to hold events safely and responsibly.

In this second communication, participants are informed that the procedure to upload the vaccination certificate or certificate guaranteeing the presence of antibodies is: access your Private Area: https://inscripciones.gomesporteventos.com/inscripcion/ix-gomera-paradise/zona_privada/loggeo/

7) The space in which the collected data was stored had been contracted by the respondent with AVAIBOOK ON-LINE S.L, being the online registration platform system for the event, where the data was hosted.

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8) In the allegations to the agreement, the respondent bases the request for health data from the participants in the race related to COVID-19, collected from 23/08/2021 to 5/09/2021, on obtaining consent, which it considers would enable the processing in accordance with Article 9.2.a) of the GDPR. However, it is not evidenced that there was any clause of data protection policy, informative clause, or means that explains and informs the participants in the race about what the processing would consist of, the request for their consent, what such consent would entail, its purpose, or how it would be collected, to enable this processing.

9) The respondent indicated in the allegations to the initiation agreement that 1,350 people participated in the race, with a total of 690 people uploading the COVID-19 data certificate to the platform, while 660 participants did not provide a COVID certificate, diagnostic test, or any similar document.

10) It is not evidenced that the respondent informed in any way about this processing of health data at the time of collecting the data from the affected individuals (23/08/2021 to 5/09/2021) on the privacy policy page of the race www.gomeraparadise.com, owned by the respondent, considering the provision and initiation of health data collection in emails dated 19 and 24/08/2021.

11) The claimant alleges on 8/09/2021 that to participate in the race "X Gomera Paradise Trail," personal data associated with the COVID-19 vaccine and recovery certificate from the disease are collected, as well as COVID diagnostic tests (antigen tests and/or PCR) at the participant's choice.

12) Requested in previous proceedings on two occasions from the respondent, the copy of the active processing activity register (RAT) at the time of collecting health data related to the complaint was not provided until the allegations to the initiation agreement of the present procedure. The RAT requested in evidence "active at the time of the collection of health data" and provided includes the RAT of "treatment activity: Management of sporting event." It contemplates historical variations without any mark of validity or period of validity or entry into force. It only includes in the three versions provided, the title given by the respondent to differentiate it, as follows:

- "RAT active at the time of the event,"

- "RAT sent to the AEPD, before its complete review" (in allegations, where it is noted that the existence of a DPO is included, which occurs from 6/2023, continuing to reference on that date in the section of "purpose" the health crisis derived from COVID-19, as well as in legitimization a law of the matter, Law 2/21 of 29/03, and

- "Current active RAT," as stated by the respondent active since October 2023. Thus, it also does not evidence the date of implementation, nor of validity or update in the subsequent ones. The respondent supports the validity of the RAT at the date when the health data was collected, from 24/08/2021 to 5/09/2021, with the title: "RAT active at the time of the event" with the mere declaration that the document was valid since 17/08/2021, being the other two versions of this.

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LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The data collected by the respondent, first those related to registration in the race, and later, through vaccination certificates and antigen tests or PCRs uploaded to the platform of the respondent gomeraparadise.com, would fall under the concept of processing personal data, including, at a later time after the registration period, health-related personal data, for which the respondent is the data controller. Article 4 of the GDPR defines:

1) "personal data": any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

(...)

2) "processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction;

(...)

7) "data controller" or "controller": the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the data controller or the specific criteria for its designation may be laid down by the law of the Union or of the Member States;

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8) "data processor" or "processor": the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller;"

(...)

"15) "data concerning health": personal data related to the physical or mental health of a natural

person, including the provision of health care services, which reveal information about their health status;”

(...)

Initially, it can be inferred from the Career Regulation that it was not anticipated that COVID certificates would need to be provided during the registration period, as nothing was indicated in it.

It was not until August 19 and August 24, 2021, that two communications were sent to the participants, inquiring about the responsibility of the participants, clarifying in the second that participation would not be excluded for those who did not provide health data, although appealing to the safety of the event and solidarity. However, the nature of the first communication, sent six days earlier, was imperative in the sense that it indicated the necessity by the wording “The organization has decided to request participants,” and the location to access this, and the manner, adding that for the “PCR or antigen test option, it must be provided to the organization at the time of collecting the bib numbers.”

These health data, classified as special category data (“sensitive data”) in Article 9 of the GDPR, are considered as such because they are particularly sensitive in relation to fundamental rights and freedoms, as the context of their processing could entail significant risks to those rights and freedoms. This is specified in Recital 51 of the GDPR, which states that personal data that, by their nature, are particularly sensitive in relation to fundamental rights and freedoms deserve special protection, as the context of their processing could entail significant risks to those rights and freedoms.

The Court of Justice of the EU has clarified that the purpose of Article 9, paragraph 1, of that Regulation is to ensure greater protection against data processing that, due to the particular sensitivity of the data concerned, may constitute a particularly serious interference with the fundamental rights to respect for private life and to the protection of personal data, guaranteed by Articles 7 and 8 of the Charter of Fundamental Rights, see in this regard, the judgment of June 5, 2023, Commission/Poland - independence and private life of judges - case C/204/21 paragraph 345, and cited case law.

It can thus be clearly inferred that the respondent acted as the data controller, as defined by Article 4.7 of the GDPR, by deciding and defining to carry out the processing of the requested data, being responsible for compliance with the principles.

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established in the form of obligations in section 1 of said article 5, pursuant to article 5, section 2, of the GDPR, and must be able to demonstrate that these principles are being met.

III

The lawful processing of personal data requires compliance with the data protection principles set forth in article 5 of the GDPR and one of the legal bases determined by article 6 of the GDPR.

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in

particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

Aside from consent as a legal basis for processing, the other bases contemplated in 6.1 of the GDPR all imply the "necessity" of processing, a term that is expressly included. In this regard, the European Data Protection Board (formerly the Article 29 Working Party) in its opinion on "Guidelines on Automated Individual Decision-Making and Profiling for the Purposes of Regulation 2016/679" indicates that, to process special categories of data, coverage must be found in article 9.2 of the GDPR and once the general prohibition is excepted, one must refer to the circumstances of article 6 of the GDPR to legitimize the processing in question. (...) "Data controllers may only process special category personal data if one of the conditions laid down in article 9, section 2, is met, as well as a condition from article 6. (...)."

There may be a legitimizing basis for processing the general data of the group of participants in the race by virtue of their registration and adherence to the rules that are regulated, rules in which, in section 14 of the race regulation, it was initially and exclusively indicated, after the registration section: "collection of bib numbers," which takes place once registered, from 6 to 10/09/2021: "the participant must submit a COVID-19 protocol document in which they commit to having complied with the measures stipulated therein." - a document whose content is also unknown.

In this case, data concerning individuals related to a sporting event is being processed, and whose

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The regulation may be modified; in fact, it is modified due to requirements made on 19 and 24/08/2021, once the registration period for the event has ended (on 15/08/2021), based on a consultation with public bodies that is unknown and not provided. As an additional result, athletes who have registered are requested to provide COVID tests or vaccination certificates, which are collected, stored, and preserved (broad concept of data processing).

In any case, it could be estimated that there is indeed a legitimate basis for the general processing of the group that registers for the event as it relates to its celebration and is connected to its development.

As an element to consider in the processing carried out, it must be assessed whether the respondent also exceeds the threshold that entails the prohibition of processing health data of these registered participants.

It is appropriate to reiterate that, pursuant to Article 5, paragraph 2, of the GDPR, the data controller is responsible for compliance with the principles established in the form of obligations in paragraph 1 of that article and must be able to demonstrate that these principles are met. That is to say, the burden of proof that personal data is processed in accordance with the GDPR falls on the data controller, in this case, the respondent.

The "principles," the subject of Chapter II of the GDPR, include, among others, Articles 5 and 6 of that Regulation.

On the other hand, among the obligations of the data controller is that of Article 24, which states:

"1. Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is in compliance with this Regulation. Such measures shall be reviewed and updated as necessary.

2. When provided in relation to the processing activities, among the measures mentioned in paragraph 1, the implementation by the data controller of appropriate data protection policies shall be included."

IV

The aforementioned processing of health data, as defined by the GDPR, like any processing, imposes that personal data will be (imperative)

- "collected for specified, explicit, and legitimate purposes," Article 5.1.a) of the GDPR.
 - "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed," Article 5.1.c) of the GDPR.
- Regarding the limitation of data processing to what is necessary in relation to the purposes for which they are processed,

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which are treaties, it can be suggested that if the request for data to provide or not provide COVID certificates was left to the discretion of the participants, it would cast doubt on the necessity of such processing, since the objectives that the respondent intends to achieve cease to be necessary as they are left to the will of the individuals who are going to participate, showing the facts that less than half of the participants did not provide it, which means that the effectiveness of the measure for the pursued objective would not be fulfilled. Conversely, the alleged necessity or relevance of the certificates would not be substantiated, along with the limitation on the right to data protection of the participants.

The health data that the respondent requests must contemplate certain purposes, one of which is that they be "legitimate," which relates to the fact that the requirement for a vaccine from an individual, as a general rule, is not mandatory according to the current regulations in Spain, nor with the regulations regarding the COVID-19 disease as stated by the respondent. Therefore, its requirement must be based on some reason that allows and legitimizes such processing, with the respondent in allegations to the initiation agreement, reproducing literally as a reason: "the existence of informed, free, and unequivocal consent of the interested parties, as collected in Article 9.2.a) of the Regulation, as a circumstance that would lift the prohibition on the processing of health data," whose features will be analyzed to determine whether they are met or not.

It is necessary to remember that Article 9 of the GDPR, among those that include health data, refers, as indicated by its title, to the "processing of special categories of personal data," also classified as "sensitive" data in recitals 10 and 51 of this Regulation.

Article 9 of the GDPR, "Processing of special categories of personal data," provides:

"1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health or data concerning a natural person's sex life or sexual orientation is prohibited.

2. Paragraph 1 shall not apply where one of the following applies:

a) the data subject has given explicit consent to the processing of those personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;

(...)

b) the processing is necessary to protect the vital interests of the data subject or of another natural person, in the event that the data subject is not physically or legally capable of giving consent;

(...)

g) the processing is necessary for reasons of substantial public interest, based on Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection, and provide for suitable and specific measures."

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adequate and specific to protect the interests and fundamental rights of the data subject;

(...)

i) the processing is necessary for reasons of public interest in the field of public health, such as protection against serious cross-border health threats, or to ensure high levels of quality and safety of healthcare and medicinal products or medical devices, based on Union law or the laws of the Member States that establish adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy,

(...)

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or health-related data.”

In relation to the circumstances set out in letters g), h), and i) of Article 9.2 of the GDPR, it should be noted that the requirement of law to restrict fundamental rights is imposed by the Spanish Constitution. In the words of the Constitutional Court, in ruling STC 76/2019, dated 22/05/2019, legal basis 5 “(...) by express mandate of the Constitution, any state interference in the realm of fundamental rights and public freedoms, whether it directly affects their development (Article 81.1 CE) or limits or conditions their exercise (Article 53.1 CE), requires a legal authorization (see, among others, STC 49/1999, of April 5, FJ 4). Thus, the reservation of law is a constitutional requirement”

(...)

The regulatory coverage of the measures that health authorities consider urgent and necessary for public health, which involve limitation or restriction of fundamental rights, is found in health legislation. Specifically, in Organic Law 3/1986, of 14/04, on Special Measures in Public Health, Law 14/1986, of 25/04, General Health Law, Law 33/2011, of 4/10, General Public Health Law.

Law 2/2021, of 29/03, on urgent measures for prevention, containment, and coordination to address the health crisis caused by COVID-19, establishes protocols that include ventilation, cleaning, and disinfection measures appropriate to the characteristics of workplaces, centers, entities, or holders of economic activities. This Law states that the adoption of necessary measures for compliance with the law will correspond to the General Administration of the State with the collaboration of the Autonomous Communities.

Furthermore, the “conduct of diagnostic tests for infection for the detection of COVID-19 is limited to those cases where there is a prior prescription by a physician and conforms to criteria established by the competent health authority.” (second paragraph of Order SND/344/2020 of 13/04, which establishes exceptional measures to strengthen the National Health System and contain the health crisis caused by COVID-19, BOE (14/04/2020). The approval of health protection regulations related to competitions must be carried out, in accordance with the provisions of the general prevention and hygiene measures against COVID-19, by health authorities.

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In this regard, it is worth mentioning, if only as an example, the Order of the Superior Court of Justice of the Canary Islands, Santa Cruz de Tenerife, Administrative Litigation Chamber, Section 2, which issued Order 249/2021 on 29/07/2021. This ruling analyzed the regulation that, in the context of the Canary Islands, approves the update of the preventive measures established by the Government Agreement of 19/06/2020, to address the health crisis caused by COVID-19, once Phase III of the Plan for the transition to a new normality has been surpassed, and the validity of the measures specific to the state of alarm has ended. Specifically, it concerned the resolution of 23/07/2021, BOC 26. The order declares the suspension of the measure requiring a complete vaccination certificate or test proof as an additional measure for access to hospitality and restoration services.

The respondent has also stated regarding consent that “it can be unequivocal and granted implicitly when it is inferred from an action of the interested party, for example, by uploading that data to the platform that was established.”

Article 4.11 of the GDPR defines the consent of the interested party: “any manifestation of free, specific, informed, and unequivocal will by which the interested party accepts, either by a declaration or a clear affirmative action, the processing of personal data concerning them;

Recital 32 states: “Consent must be given by a clear affirmative act that reflects a manifestation of free, specific, informed, and unequivocal will of the interested party to accept the processing of personal data concerning them, such as a written declaration, including by electronic means, or a verbal declaration. This could include checking a box on a website, choosing technical parameters for the use of information society services, or any other statement or conduct that clearly indicates in this context

that the interested party accepts the proposed processing of their personal data. Therefore, silence, pre-checked boxes, or inaction should not constitute consent. Consent must be given for all processing activities carried out for the same or the same purposes. When processing has multiple purposes, consent must be given for all of them. If the consent of the interested party is to be given in response to a request by electronic means, the request must be clear, concise, and not unduly disrupt the use of the service for which it is provided.”

As part of the conditions for consent, Articles 7.1 and 7.3 of the GDPR indicate that “1. When the processing is based on the consent of the interested party, the controller must be able to demonstrate that the interested party consented to the processing of their personal data.” (...)

“3. The interested party shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of the processing based on consent prior to its withdrawal. Before giving their consent, the interested party shall be informed of this. It shall be as easy to withdraw consent as to give it.

It should be noted that, in the version of the Regulation of the race, dated 20/10/2021, only section 14 of “collection of bib numbers,” which is carried out once registered, from 6 to 10/09/2021, was mentioned, stating that “the participant must submit a COVID-19 protocol document in which they commit to having complied with the measures stipulated therein.”

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It can be estimated that it was as a result of the messages sent to the participants on 19 and 24/08/2021, how and when the request for COVID health certificates and data was established, outside the regulations of the race.

Analyzing the first message sent on 19/08/2021 that the respondent directed to the participants, there is no mention of voluntariness or the necessity of consent or measures aimed at obtaining it; instead, it states “has decided to request” “as recommended by various Public Bodies.”

The respondent does not provide such recommendations, instead providing the response to their request for authorization to hold the event, in which they explain the preventive measures to be adopted, including a document from the Canary Health Service dated 23/08/2021 (prior to which the respondent had made their decision).

The message sent by the respondent to the race participants on 24/08/2021 adds information from which it can be assumed that the certificates are sent voluntarily, by adding the phrase: “At no time have we communicated the obligation to present documentation or the participant will be removed from the event,” although there was no information regarding the treatment that would be carried out and they encouraged sending it. There was no proposal regarding the data processing that would be carried out with those participants who would voluntarily send their health data. There was also no mention of the withdrawal of consent, which the respondent indicates in their allegations regarding the proposal.

Thus, those participants who decided to send them, or those who had already sent them, since the deadline for this began on 23/08/2021, were not aware of any information regarding the processing of such data and their guarantees and rights, even if it was voluntary in their case to provide the data, which does not reduce the obligations established by the GDPR nor the rights of the affected individuals, if their collection is foreseen as in this case.

In Recital 42 of the GDPR, it is added “...For consent to be informed, the data subject must know at least the identity of the data controller and the purposes of the processing for which the personal data are intended.” Thus, the note of “informed” fails, which implies that all necessary information must be provided at the time consent is requested, and that it must address the substantive aspects of the processing that the consent aims to legitimize.

Regarding the manifestation of will being “unequivocal”... “accepting” “either by a declaration or a clear affirmative action,” it must be evident that the data subject has given their consent to a specific operation of data processing. It cannot be inferred from the sending of the aforementioned certificates

to the platform indicated by the respondent, when what is clear is what is sent, but there is no awareness that any proposal is being accepted, due to the absence of any at the data protection level regarding the processing of their data.

Valid consent requires the use of mechanisms that leave no doubt about the data subject's intention to consent.

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It is also not permissible to agree that consent is valid when it must be specific. In other words, indiscriminate consent without specifying the exact purpose of the processing is not admissible. To be specific, consent must be understandable: it must clearly and precisely refer to the scope and consequences of the data processing.

Therefore, it is not established that the participants gave their explicit consent for the processing of such personal data for one or more of the specified purposes, as indicated in Article 9.2 a) of the GDPR, nor that the respondent obtained it under such a legitimizing basis.

The fact is that consent in this case cannot be derived from behavior such as the submission of COVID certificates, as otherwise it would not be consent, nor explicit. On the other hand, in no written document (message), privacy policy, or terms of use of the registrations with third parties, is there any reference to such consent. Therefore, the provision of consent by the participants cannot be classified as informed, free, and unequivocal, regardless of whether the contribution was voluntary, since when contributions were made, such consent should have been obtained, which must also be explicit as a distinguishing feature.

The term explicit refers to the manner in which the data subject expresses their consent. It means that the data subject must give an express declaration of consent. An obvious way to ensure that consent is explicit would be to confirm consent expressly in a written statement. When appropriate, the data controller could ensure that the written statement is signed by the data subject, in order to eliminate any possible doubts and potential lack of evidence in the future.

However, such a signed statement is not the only way to obtain explicit consent, and it cannot be said that the GDPR prescribes written and signed statements in all circumstances requiring explicit consent.

According to the claims made by the respondent, there was unequivocal, free, and informed information. To do this, it must be assumed that this consent, which would lift the prohibition on processing health data, must be "explicit," which is the opposite of implicit or deduced from certain behavior. Therefore, uploading the certificates can never be classified as obtaining explicit consent. Furthermore, the terms in which consent is given are lacking, that is, "informed, free, and specific consent."

Athletes in this case are imposed a limitation on their individual and fundamental right to their personal data, with a triple option, all related to their health information, which may consist of providing the respondent with a vaccination certificate, "certificate of having the relevant dose due to having already had COVID-19," which involves having developed antibodies from having suffered the infection, and proof of having diagnostic tests for PCR or antigen detection. The voluntary nature of providing the certificates should not imply ignoring the requirements that the GDPR and the LOPDGDD impose for their processing, nor the reduction of rights for those who consider they must provide them, which, as argued in this reasoning, does not adhere to the obtaining of explicit consent.

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Therefore, the conditions that may lift the prohibition on processing special categories of data are set out in paragraph 2 of the aforementioned Article 9.

However, it is not established in this case that any of these circumstances were present in the processing carried out by the respondent, which was what prompted the initiation of the procedure, nor the particularly analyzed circumstance of explicit consent.

In light of this, based on the available evidence, it is considered that the conduct of the respondent constitutes a violation of Article 9 of the GDPR.

V

Another violation attributed to the respondent is that of Article 30 of the GDPR, for not having, at the time of processing health data, a record of processing activities, which specifies:

“1. Each controller and, where applicable, their representative shall maintain a record of the processing activities carried out under their responsibility. This record shall contain all the information indicated below:

- a) the name and contact details of the controller and, where applicable, the joint controller, the representative of the controller, and the data protection officer;
- b) the purposes of the processing;
- c) a description of the categories of data subjects and of the categories of personal data;
- d) the categories of recipients to whom the personal data have been or will be disclosed, including recipients in third countries or international organizations;
- e) where applicable, the transfers of personal data to a third country or an international organization, including the identification of that third country or international organization and, in the case of transfers referred to in Article 49, paragraph 1, second sentence, the documentation of adequate safeguards;
- f) where possible, the envisaged time limits for erasure of the different categories of data;
- g) where possible, a general description of the technical and organizational security measures referred to in Article 32, paragraph 1.

(...)

3. The records referred to in paragraphs 1 and 2 shall be in writing, including in electronic format.

4. The controller or the processor and, where applicable, the representative of the controller or the processor shall make the record available to the supervisory authority upon request.

5. The obligations set out in paragraphs 1 and 2 shall not apply to any enterprise or organization employing fewer than 250 persons, unless the processing that it carries out may pose a risk to the rights and freedoms of data subjects, is not occasional, or includes special categories of personal data referred to in Article 9, paragraph 1, or personal data relating to criminal convictions and offenses referred to in Article 10.”

Article 30 of the GDPR is found within Chapter IV “Controller and Processor,” in Section 1 “General Obligations,” relating to controllers. Recital 82 of the GDPR states: “To demonstrate compliance with this Regulation, the controller or the processor must maintain records of processing activities under its responsibility. All controllers and processors are obliged to cooperate with the supervisory authority and to make such records available to it upon request, so that they can be used to monitor processing operations.”

This record-keeping obligation serves as a means to ensure that these controllers respect the guarantees provided by the aforementioned Regulation for the protection of the rights and freedoms of data subjects.

This general obligation to maintain duly documented records, including their chronology and content, is framed within the principle of Article 5.2 of the GDPR, which states: “The controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it (‘accountability’), which requires that controllers be able to demonstrate compliance with their obligations under the GDPR.”

In this case, the risk posed by the processing of health data, classified as sensitive, and the impact on personal privacy related to the processing is clear.

Given the plausible modification of the records of processing activities, or even their extinction over time, as these activities change or cease, they must be kept updated and current. The records provided by the respondent regarding the validity dates do not reliably demonstrate that such versions

of the contents were the ones existing at the time the health data was collected (08/24/2021), although the respondent stated that it has been in effect since 08/17/2021, without providing any element or indication to support this. Likewise, the records submitted as evidence, despite being from after June 2023, still refer to the collection of health data for COVID-related reasons and the purpose of crisis control, which evidences the lack of updating in the maintenance of such records. In light of all this, the violation of Article 30 of the GDPR is established.

VI

Article 5 of the GDPR states among its principles:

“1. Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (‘lawfulness, fairness, and transparency’)”

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Article 5.1 a) of the GDPR enshrines the principle of transparency in the processing of personal data, in connection with the obligations arising from this principle, established in Articles 13 and 14 of the GDPR, as well as the general conditions of the information that must be provided to the data subject, contained in Article 12 of the same legal text. Likewise, Article 5.1 a) of the GDPR should be connected with the provisions established in Article 11 of Organic Law 3/2018, of December 5 (“LOPDGDD”).

This principle of transparency is materialized according to Recital 39, in the obligation of the data controller to inform data subjects about the processing of their personal data presented in a concise, easily accessible, and understandable manner (Recital 58) and to inform them about the existence of the processing operation and its purposes.

Article 13 of the GDPR states:

“1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

a) the identity and contact details of the controller and, where applicable, of the controller's representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent data processing:

a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;

b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;

c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent

before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the provision of personal data is a statutory or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing."

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treatment for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

The GDPR itself highlights the absolute link between the principle of transparency and the duty to inform the data subject, as it states in its Article 12 "Transparency of information, communication, and modalities for exercising the rights of the data subject," establishing in paragraph 1 the following: "The data controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13..."

The LOPDGDD indicates in its Article 11, "Transparency and information to the affected party:

1. When personal data are obtained from the affected party, the data controller may comply with the information duty established in Article 13 of Regulation (EU) 2016/679 by providing the affected party with the basic information referred to in the following paragraph and indicating an electronic address or other means that allows for easy and immediate access to the remaining information.

2. The basic information referred to in the previous paragraph must contain, at a minimum:

a) The identity of the data controller and, where applicable, of its representative.

b) The purpose of the processing.

c) The possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679."

Regarding the form and content of fulfilling the right to information for the affected parties in the collection of health data that occurs after the sending of message 19 and 24/08/2021, which requires the submission of proof or vaccination certificates, it should be specified that the website of the race, in its privacy policy, only mentions clients or users who contract any service, and based on this, they offer various legitimizations.

However, no specific aspect of the information regarding the collection of health data contained in the vaccination certificate or in the reports of the diagnostic tests necessary to participate in the race is detailed.

It is necessary to differentiate two moments regarding the collection of data related to COVID-19. First, concerning the registration forms for the race, there were...

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such registrations during the open period for this, from 14/05/2021 to 15/08/2021, in accordance with what was stated in the Race Regulations. Neither in the Race Regulations, nor therefore in that form, is it evidenced that information was provided regarding the processing of COVID-19 data, taking into

account, moreover, that such processing was decided and projected in the emails of 19 and 24/08/2021. Thus, it is not possible, as the respondent states, that in the registration form, which was on the gomeraparadise website or on the gomesport website, there was any element that informed that the health data of the participants would be subject to processing, nor the issues related to it (exercise of rights, retention period, purpose of processing, recipients, etc.). The moment of the registration form should not be confused with the subsequent stage of the option to upload health documents initiated on 23/08/2021. Therefore, when the Race Regulations were approved, the collection of the disputed data was not foreseen, making it impossible to inform in the registration form, as the respondent claims and supports in evidence. On the other hand, alongside the fragmentation of some aspects offered regarding the processing, additional confusion is generated by indicating in the Race Regulations that the official page of the same is gomeraparadise, where registrations must be made, and according to the respondent's claim, the information would be provided from another website, gomesport, also owned by the respondent.

It is also not evidenced that in the space for uploading certificates on the respondent's website through which participation was articulated, gomeraparadise.com, or gomesport, the complete information required by Article 13 was included, nor even the basic information indicated in Articles 11.1 and 2 of the LOPDGDD, which are based on the need to complement the aforementioned information, facts that the respondent also does not substantiate.

Information could be inferred, but fragmented across different elements: emails, race page, privacy policy, but none in a unified manner, disorganized. In the privacy policy of the website included in the file, dated 21/10/21, it was indicated to the respondent for the provision of services, without any reference to health data; in the email of 24/08/21, the purpose of ensuring the health of the participants was hinted at, but no complete information regarding compliance with the requirements of Article 13 of the GDPR at the time of data collection, even if collected voluntarily, an element that has nothing to do with whether such information was provided.

Thus, regarding the processing of health data related to COVID-19, the assertion made by the respondent in evidence, point I, claiming that the privacy policy for participants to know the type of data that would be collected was contained in the race registration form, "on the registration screen" as the first layer of information, referring to the "Legal Notice of the website itself" and to the "privacy policy of the website gomesporteventos.com, to access the second layer of information," does not seem credible. The respondent also states that the "legal notice" refers to point "9 PRIVACY POLICY" which refers with the wording: "The User can consult how the respondent 'uses their data and the security measures implemented' in the link to the privacy policy of this website, and in the privacy policy of the website www.gomesporteventos.com, where they can expand information about the processing of the data of the participants in our events at the following link

<https://gomesporteventos.com/politica-privacidad>." It has already been seen that, in the privacy policy of the race website, printed version 21/10/2021, there was no information regarding the processing of health data subject to this procedure.

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Furthermore, the respondent refers to the privacy policy of Gomesport, ANNEX III that was provided, a website that is not that of the competition, in an attempt to demonstrate that it was the informative clause that existed on the date when the voluntary claim was filed, 24/08/2021, regarding the submission of COVID-19 certificates. This ANNEX III is part of ANNEX I, also submitted as evidence, also from Gomesport (it bears the logo), which the claimant considers to inform participants about the processing of COVID-19 data.

However, this assertion cannot be validated, not only because it is not the official website of the competition, or because it has not been proven that it could have been available at the time of registration for the event, which was closed from 15/08/2021 to 24/08/2021. It also lacks credibility for several reasons, notably:

- The accreditation of the facts or circumstances of the processing, including when and how the information is provided, corresponds to the respondent. The document does not bear any date of the version, nor any indication that would allow deducing the date of application or validity.
- The same data controller appears in the privacy policy of the official website printed on 21/10/2021, but the addresses to exercise rights are different.
- The DPD is included in the evidence provided, a fact that does not occur until June 23.
- It is also confirmed that the version provided was not the one in force at the time of the actual collection of health data, because in the respondent's response in evidence regarding the requested information, after the email indicating the collection of health data from 23/08 to 5/09/2021, it was stated that there had been no changes to the privacy policy and data protection information that appeared in the printed version of 21/10/2021.

All of this takes into account that information to data subjects must be provided before the collection of data.

The meaning and effects of providing complete and exhaustive information as stipulated in Article 13 are not fulfilled by merely alluding to the collection of data voluntarily or not, or by requesting the solidarity of the participants, since in any case, and in this specific instance, the respondent collected data and processed it for a purpose.

The respondent only refers to participants uploading data to the online platform and that they can consult the instructions and some notes about the data controller on the same platform.

However, the specific informative clause regarding the collection of data from COVID tests or antigen/vaccination certificates was not provided.

Recital 60 states: "The principles of fair and transparent processing require that the data subject be informed of the existence of the processing operation and its purposes. The data controller must provide the data subject with any additional information necessary to ensure fair and transparent processing, taking into account the..."

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"circumstances and the specific context in which personal data is processed."

The GDPR enumerates the categories of information that must be provided to a data subject regarding the processing of their personal data when it is obtained from the data subject (Article 13). All the information referred to in these sections is equally important and must be provided to the data subject. In principle, the data of the participants is collected upon their registration, a period that runs from 14/05 to 15/08/2021.

The payment of the registration fee occurs in an initial period, from 14/05 to 14/07/2021.

According to the statements made by the respondent, all registrations and all relevant data collected from the participants are stored on an online platform for event registrations, which is governed by "the following Privacy Policy, and through which all relevant information of each and every participant is uploaded, including the vaccination certificate or test," making known the "rules of use and conditions accepted upon registration," which informs that the technological tool that allows managing the registration is provided by a data processor, without providing any information regarding the processing that would be carried out.

Alongside this, the Race Regulations state that, on the official race page, www.gomeraparadise.com (Article 4 of the Race Regulations), the form published on that webpage must be completed in the registration section.

Regarding the respondent's allegations that the emails dated 19 and 24/08/2021 informed about the purposes and the legitimacy for the processing of the data, it must be indicated that this is not true, as they only provided instructions on how to upload the certificates to the platform and referred to the difficult situation of the pandemic, stating that during a health alert period, the best for everyone is to "guarantee maximum security," statements that are far from the minimum content indicated in Article

13 of the GDPR.

On the assertion made in the allegations that the information was contained in the "rules of use and conditions," their content has already been recounted, which informed about the access of the data to the platform of a third party contracted for this purpose, as a data processor, considering that this figure processes the data on behalf of the controller, without implying in any way a differentiated processing or a transfer of data to a third party. The content of the assignment to a third party is not mandatory in the information to be provided to users. The references contained in those rules of use and conditions to the "manager" (according to the allegations regarding the initiation agreement) who, by the way, is not identified as the respondent, contain only general statements and do not have any link as stated in the allegations to any page of the respondent. The statements made in the allegations about "AIVABOOK Sports makes several references to the policies of the MANAGER. That is, the policies of the Gomera Paradise websites (which refers to that of GomeSport, for additional information), and that of GomeSport (which provides detailed information)" providing document 1 of the allegations, are thus deductions of the respondent without any basis, as no connection with GOMESPORT has been verified on the race page, or at least it has not been explained by the respondent, despite being listed in the Race Regulations as the organizer of the same, and on the official page of this, the respondent is listed as the data controller.

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data collected for the same through the registration form.

Regarding the content of your allegation that "prior to this procedure, an informative clause of accessible understanding has been corrected and incorporated for the interested party on the AVAIBOOK platform," it should be noted that the one provided in document 1, referred to as your "privacy policy for the 2023 race," an excerpt located on the gomesport website, the relationship or function it serves with that of the race is unknown. It turns out that, being clauses related to 2023, they continue to contemplate the collection and processing of health data related to COVID, despite the passage of time, and again referring to consent.

The statements without documentary evidence supporting the specific period in which the data is collected lack the liberating scope of the obligation required of individuals or entities that process personal data, with the respondent demonstrating non-compliance with the aforementioned Article 13 of the GDPR.

VII

The infringing behaviors are typified in the GDPR, Article 83.5:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of data subjects under Articles 12 to 22."

And in Article 83.4:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

- a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;"

In this regard, the LOPDGDD, in its Article 71, establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 of the LOPDGDD indicates:

"Very serious infringements.

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following: (...)

“e) The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in Article 9 of this organic law being present.”

(...)

“h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.”

And Article 73 of the LOPDGDD considers, for the purposes of the statute of limitations, as serious infringements:

“According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall be subject to a two-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

“n) Not having the record of processing activities established in Article 30 of Regulation (EU) 2016/679.”

VIII

Paragraphs b, d), and i) of Article 58.2 of the GDPR provide as follows:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

“b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;”

(...)

“d) order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame;”

“i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;”

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The respondent also asserts that a warning would be appropriate since “in other resolutions, with the same infraction, such as file 202312720, no sanction was imposed, but rather a warning was issued.” In this regard, it should be noted that the files are manifestly different because the one referenced by the respondent affects only one complainant and only for lack of information, whereas in the case now examined, three infractions are attributed, related to the processing of unnecessary health data for the provision of the service and affecting the 1,350 participants from whom health data was requested without informing them and without any exception from Article 9.2 of the GDPR that would allow the processing of the data, of which 690 provided the data.

In this case, given the category of the data collected and the risks to the rights and freedoms that are compromised as a result, the administrative sanction procedure of a fine is invoked. The information in the collection of the data, even if done voluntarily, is directly related to the processing of the health data of the participants, making it impossible to separate the connection and importance of one from the other.

It is not possible to issue a warning as claimed by the respondent for this reason. Furthermore, on the other hand, the structured provision of the RAT also contains a guarantee of the correct processing of the data.

IX

The determination of the sanctions to be imposed in the present case requires observing the provisions of Articles 83.1) and 2) of the GDPR, which respectively state the following:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringements committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular if...

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the controller or the processor notified the infringement and, in such case, to what extent;

- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or the processor in question in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

In this section, the LOPDGDD provides in its Article 76, titled: “Sanctions and corrective measures”:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
 - b) The connection of the infringer's activity with the processing of personal data.
 - c) The benefits obtained as a result of the commission of the infringement.
 - d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
 - e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
 - f) The impact on the rights of minors.
 - g) Having, when not mandatory, a data protection officer.
 - h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.
3. It will be possible, complementarily or alternatively, to adopt, when appropriate, the remaining corrective measures referred to in Article 83.2 of Regulation (EU) 2016/679.”

According to the transcribed provisions, for the purpose of determining the amount of the fines to be imposed in this case, for the infringement of Article 9 of the GDPR for which the respondent is held responsible, the following factors are considered concurrent as aggravating factors that reveal a greater unlawfulness and/or culpability in the conduct of the respondent:

- Article 83.2.a) GDPR "nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages suffered;" While the intended purpose was to ensure safety to avoid contagions during the competition, leaving it to the participants' discretion to provide their data does not mean that the legitimizing basis for this type of data should not have been accounted for. The fact that more than half of the participants, 690 out of 1350 participants, provided their data, implies a

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a very high number of participants and does not mean that it is not serious, given the data it affects. The nature of the potential harm may imply that athletes are compelled to get vaccinated in order to adhere to the recommended guidelines for participating in the event if they were not already vaccinated.

For the infringement of Article 9 of the GDPR, a fine of 8,000 euros is considered.

For the infringement of Article 13 of the GDPR, Article 83.2.b) is estimated to be concurrent as an aggravating factor: "the intentionality or negligence in the infringement," which reveals a greater unlawfulness and/or culpability in the conduct of the respondent. This aspect relates the execution of the action to the subject, in the sense of not only attributing the infringement to its responsible party but also the fact that it can aggravate or reduce the sanction, depending on the degree of culpability.

Regarding the attribution to the responsible subject, the principle of culpability prevents the admission of objective responsibility in administrative sanctioning law; however, it is also true that the absence of intentionality is secondary since these types of infringements are normally committed through culpable or negligent actions, which is sufficient to integrate the subjective element of fault. What is evaluated in this section is its analysis for the graduation of the sanction (Article 40 LRJPAC), observing the specific diligence displayed in the action by the responsible party, and in this specific case, there is a notable negligence on the part of the respondent, evidenced by an omissive conduct of complying with their basic informational duty in the treatment of the rights holders, given that the possibility of varying the race regulations to require data and the need to register for the competition, or the voluntary nature of providing the data, does not diminish the lack of the diligence required to fulfill this basic duty.

For the infringement of Article 13 of the GDPR, a fine of 6,000 euros is imposed.

For the infringement of Article 30 of the GDPR, a fine of 1,000 euros is considered.

Regarding the respondent's allegations that good faith and the desire to act in accordance with the guidelines and criteria of the health authority were present, with the intention of organizing the sporting event without risk, it should be noted that no guideline or criterion from the health authority has been provided that foresees the need to provide vaccination certificates, even on a voluntary basis. This necessity is not corroborated by the voluntary nature of the submission, which resulted in just under half not providing such certificates.

Regarding good faith and intention, they do not eliminate the unlawful action and culpability attributed to them; however, it is not proposed to revisit the analysis of the projected treatment when in the email dated 24/08/2021 it is sent to address doubts and clarifications, informing that those who do not provide it will not be excluded from the race, which calls into question the necessity and purpose of the aforementioned treatment. These allegations are not sufficiently substantial to reduce the amount of the infringements, and therefore they are dismissed.

Regarding the lack of benefits obtained from the processing of the data subject to the claim, as a mitigating factor, this criterion of graduation is established in the LOPDGDD, in accordance with the provisions of Article 83.2.k) of the GDPR, according to which administrative fines are...

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they will impose, taking into account any "aggravating or mitigating factors applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement," understanding that avoiding a loss has the same nature for these purposes as obtaining benefits. If we add to this that the sanctions must be "in each individual case" effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR, admitting the absence of benefits as a mitigating factor is not only contrary to the factual premises contemplated in Article 76.2.c), but also contrary to what is established in Article 83.2.k) of the GDPR and the principles indicated. Thus, valuing the absence of benefits as a mitigating factor would nullify the dissuasive effect of the fine, to the extent that it diminishes the effect of the circumstances that effectively influence its quantification, providing the responsible party with a benefit to which they are not entitled. It would be an artificial reduction of the sanction that could lead to the understanding that infringing the regulation without obtaining benefits, financial or otherwise, "will not produce a negative effect proportional to the seriousness of the infringing act." It should also be added that "In any case, the administrative fines established in the GDPR, in accordance with the provisions of its Article 83.2, are imposed based on the circumstances of each individual case," and, in the present case, it is not considered that the absence of benefits is an adequate and determining factor for assessing the seriousness of the infringing conduct. Only in the case that this absence of benefits is relevant for determining the degree of unlawfulness and culpability present in the specific infringing act can it be considered as a mitigating factor, in application of Article 83.2.k) of the GDPR, which refers to "any other aggravating or mitigating factor applicable to the circumstances of the case." This paragraph leaves a door open for those cases where the absence of benefits may be considered a mitigating circumstance, but not in accordance with the literal and teleological interpretation of the legislator according to the provision of Article 83.2.k) of the GDPR. The Judgment of the National Court, dated 05/05/2021, rec. 1437/2020, also indicates: "It considers, on the other hand, that the non-commission of a previous infringement should be appreciated as a mitigating factor. Well, Article 83.2 of the GDPR establishes that the circumstance 'e) any previous infringement committed by the responsible party or the data processor' must be taken into account for the imposition of the administrative fine, among others. It is an aggravating circumstance; the fact that the prerequisite for its application does not occur means that it cannot be taken into consideration, but it does not imply or allow, as the plaintiff intends, its application as a mitigating factor"; applied to the case under review, the lack of the prerequisite for its application regarding Article 76.2.c) of the LOPDGDD, that is, obtaining benefits as a consequence of the infringement, does not allow its application as a mitigating factor.

Regarding the measures implemented by the respondent after the initiation agreement, some are not understandable, such as the notification to necessary interveners of the data security breach, and others are general measures of ordinary data protection administration implemented at the beginning of the processing.

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, administrative fines for the infringements of the GDPR of the following articles:

- 9, in accordance with Article 83.5.a) of the GDPR and classified as very serious for the purposes of prescription in Article 72.1.e) of the LOPDGDD, with a fine of 8,000 euros.

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-30, in accordance with Article 83.4.a) of the GDPR and classified as serious for the purposes of prescription in Article 73.n) of the LOPDGDD, with a fine of 1,000 euros

-13 in accordance with Article 83.5.a) of the GDPR and classified as very serious for the purposes of

prescription in Article 72.1.h) of the LOPDGDD, with a fine of 6,000 euros

SECOND: NOTIFY this resolution to B.B.B.

THIRD: This resolution will be executable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes executable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of 29/07, in relation to Article 62 of Law 58/2003, of 17/12, by depositing it, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executable, if the date of executability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of 13/07, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the remaining registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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